



**U.S. Citizenship  
and Immigration  
Services**

**Non-Precedent Decision of the  
Administrative Appeals Office**

In Re: 35612080

Date: JAN. 14, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner, a judo coach, seeks classification as an individual of extraordinary ability. *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This first preference classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation.

The Director of the Nebraska Service Center denied the petition, concluding the Petitioner did not receive a one-time achievement or satisfy at least three of the initial evidentiary criteria. The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

**I. LAW**

Section 203(b)(1)(A) of the Act makes visas available to immigrants with extraordinary ability if:

- (i) the alien has extraordinary ability in the sciences, arts, education, business, or athletics which has been demonstrated by sustained national or international acclaim and whose achievements have been recognized in the field through extensive documentation,
- (ii) the alien seeks to enter the United States to continue work in the area of extraordinary ability, and
- (iii) the alien's entry into the United States will substantially benefit prospectively the United States.

The term “extraordinary ability” refers only to those individuals in “that small percentage who have risen to the very top of the field of endeavor.” 8 C.F.R. § 204.5(h)(2). The implementing regulation at 8 C.F.R. § 204.5(h)(3) sets forth a multi-part analysis. First, a petitioner can demonstrate sustained acclaim and the recognition of achievements in the field through a one-time achievement (that is, a major, internationally recognized award) or qualifying documentation that meets at least three of the ten categories listed at 8 C.F.R. § 204.5(h)(3)(i) – (x) (including items such as awards, published material in certain media, and scholarly articles).

Where a petitioner meets these initial evidence requirements, we then consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010) (discussing a two-part review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Visinscaia v. Beers*, 4 F. Supp. 3d 126, 131-32 (D.D.C. 2013); *Rijal v. USCIS*, 772 F. Supp. 2d 1339 (W.D. Wash. 2011).

## II. ANALYSIS

The Director determined the Petitioner did not show his receipt of a major, internationally recognized award under 8 C.F.R. §204.5(h)(3). Moreover, the Director concluded the Petitioner met only one (leading or critical role) of the five claimed alternate regulatory criteria under 8 C.F.R. § 204.5(h)(3)(i)-(x).

### A. One-Time Achievement

The regulation at 8 C.F.R. § 204.5(h)(3) provides that “[s]uch evidence shall include evidence of a one-time achievement (that is, a major internal[ly] recognized award).” Further, the House Report specifically cited to the Nobel Prize as an example of a one-time achievement.<sup>1</sup> *See* H.R. Rep. 101-723, 59 (Sept. 19, 1990), *reprinted in* 1990 U.S.C.C.A.N. 6710, 1990 WL 200418 at \*6739. Moreover, we have consistently recognized other examples of a one-time achievement include the Pulitzer Prize, an Academy Award, and an Olympic Medal. Further, we must look to Congress’ intent that “admission under this category is to be reserved for that small percentage of individuals who have risen to the very top of their field of endeavor.” *Id.* Thus, consistent with legislative history, a one-time achievement must be interpreted very narrowly, with only a small handful of awards qualifying as major, internationally recognized awards.

In addition, the selection of Nobel Laureates, the example provided by Congress indicated above, is reported in the top media internationally regardless of the nationality of the awardees, reflects a familiar name to the public at large, and includes a large cash prize. While an internationally recognized award could conceivably constitute a one-time achievement without meeting all of those elements, it is clear from the example provided by Congress that the award must be global in scope and internationally recognized, not just acknowledged within the field as its highest award.

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<sup>1</sup> Although in the O-1 nonimmigrant extraordinary ability context, the regulation at 8 C.F.R. § 214.2(o)(3)(iii)(A) provides an example of the Nobel Prize as an example of a major, internationally recognized award.

The Director's decision indicated:

The Petitioner submitted evidence that the petitioner was granted the title of "master of sport" by the [REDACTED] in 2001. However, as the award relates to the petitioner's work as an athlete, it therefore has little probative value for this proceeding. The petitioner also submitted evidence supporting that the petitioner was trained and performed as a coach, and evidence of the awards of others, but submitted no objective evidence that the petitioner was the coach of these awardees, nor did the petitioner submit clear evidence establishing that these awards are equivalent to a Nobel Prize, Olympic medal, or similar.

On appeal, the Petitioner states:

The evidence of "master of sports" related to the athletic career of the Petitioner; that although Petitioner submitted evidence supporting that the Petitioner trained and performed as a coach with evidence of awards of others, no objective evidence was submitted that Petitioner was the coach of those awardees and no objective evidence establishing that these awards are equivalent to a Nobel Prize, Olympic medal or similar.

The Petitioner does not articulate how the Director erred in finding the Petitioner did not demonstrate his receipt of a major, internationally recognized award. In fact, it appears the Petitioner references statements from the Director's decision without further elaborating or showing how the Director erred as a matter of fact, law, or policy. *See Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (declining to address a "passing reference" to an argument in a brief that did not provide legal support). Accordingly, the Petitioner did not establish error in the Director's decision.

Notwithstanding the above, we agree with the Director's assessments. The Petitioner's claim of "Master of Sport" relates to his achievements as a judo athlete rather than as a judo coach. *See Lee v. Ziglar*, 237 F. Supp. 2d 914 (N.D. Ill. 2002) (finding that extraordinary ability as a baseball player does not imply that he also has extraordinary ability in all positions or professions in the baseball industry such as a manager, umpire or coach); *Mussarova v. Garland*, 562 F.Supp.3d 837 (C.D. Ca. 2022) (determining that the plaintiff's awards as a water polo player were not awarded as a water polo coach); *Integrity Gymnastics & Pure Power Cheerleading, LLC v. USCIS*, 131 F.Supp.3d 721 (S.D. Oh. 2015) (concluding that the AAO's reasoning, relevant statutory and regulatory language, and case law was not arbitrary, capricious, or otherwise not in accordance with the law in finding that an Olympic gold medal gymnast must meet the extraordinary ability classification through her achievements as a coach, her intended area of expertise). Moreover, the Petitioner did not explain how the awards earned by other athletes, even if he demonstrated his coaching connection, establishes his receipt of the awards. Finally, the Petitioner did not show how any of these awards enjoy broad, significant, and international recognition and receives a similar level of attention or popularity by the general public comparable to other major, globally recognized awards such as Nobel Prizes, Olympic Medals, and Oscars.

For these reasons, the Petitioner did not establish his receipt of a one-time achievement under the regulation at 8 C.F.R. § 204.5(h)(3).

## B. Evidentiary Criteria

### 1. Awards

The regulation at 8 C.F.R. § 204.5(h)(3)(i) requires “[d]ocumentation of the alien’s receipt of lesser nationally or internationally recognized prizes or awards for excellence in the field of endeavor.” On appeal, the Petitioner indicates his “Master of Sport,” ranking recognition, and black belt degree as an athlete. For the reasons discussed above, these awards relate to the Petitioner’s prior career as a judo athlete and will not be considered in his area of expertise as a judo coach. *See Lee*, 237 F. Supp. 2d at 914; *Integrity Gymnastics & Pure Power Cheerleading, LLC*, 131 F.Supp. 3d at 721; *Mussarova*, 562 F.Supp. 3d at 837.

In addition, the Petitioner claims “he was awarded a title of National Coach in the United States” and “acknowledges that the evidence was obtained subsequent to the filing of the I-140 petition.” The affected party has the burden of proof to establish eligibility for the requested benefit at the time of filing the benefit request and continuing until the final adjudication. *See* 8 C.F.R. § 103.2(b)(1); *see also Matter of Katigbak*, 14 I&N Dec. 45, 49 (Comm’r 1971) (providing that “Congress did not intend that a petition that was properly denied because the beneficiary was not at that time qualified be subsequently approved at a future date when the beneficiary may become qualified under a new set of facts.”). Because the Petitioner became a “National Coach” after he filed his petition, we need not determine his eligibility under this claim for this criterion.

Finally, the Petitioner states that he “is submitting additional evidence/information related to the competitions that the athletes he had trained in [redacted] participated, along with the letters from the athletes.” Because the Petitioner was put on notice and given a reasonable opportunity to provide this evidence, we will not consider it for the first time on appeal. *See* 8 C.F.R. § 103.2(b)(11) (requiring all requested evidence be submitted together at one time); *Matter of Soriano*, 19 I&N Dec. 764, 766 (BIA 1988) (declining to consider new evidence submitted on appeal because “the petitioner was put on notice of the required evidence and given a reasonable opportunity to provide it for the record before the denial”). Moreover, in determining eligibility for this criterion, we look to the plain language of the regulation at 8 C.F.R. § 204.5(h)(3)(i), requiring “[d]ocumentation of the alien’s receipt” of prizes or awards. We consider the term “alien’s receipt” using its ordinary, common meaning. *See, e.g., Perrin v. United States*, 444 U.S. 37, 42 (1979) (“A fundamental canon of statutory construction is that, unless otherwise defined, words will be interpreted as taking their ordinary, contemporary, common meaning . . .”). The description of this type of evidence in the regulation indicates that the focus should be on the person’s receipt of the awards or prizes, as opposed to the employer’s receipt of the awards or prizes.<sup>2</sup> Thus, prizes or awards not received by or bestowed upon the Petitioner do not meet this regulatory criterion.

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<sup>2</sup> *See generally* 6 USCIS Policy Manual F.2(B)(1), <https://www.uscis.gov/policymanual>.

Accordingly, the Petitioner did not show he satisfies this criterion.

## 2. Memberships

The Petitioner claims eligibility for this criterion based on his membership with the [redacted] [redacted] as a head coach and references a letter from D-K-, founder of [redacted] who stated:

Since 2008 [the Petitioner] started working as a coach at our [redacted] I was proud to see how [the Petitioner] started training the young athletes and passed on his knowledge and expertise to the young generation. It was not a surprise that [the Petitioner] succeeded as a coach within a short period of time. In 2010 [redacted] administration placed [the Petitioner's] candidacy for the post of the Head Coach. His candidacy was chosen for his outstanding accomplishments as an athlete and a coach. His knowledge of judo as a martial art, sport and the philosophy behind it, his scrupulous execution of the rules and regulation of judo as a coach, placed him above his peers [sic] and offered an opportunity for our administration to acquire an invaluable addition as a Head Coach. His candidacy over four other coaches. He continued his work as a Head Coach until 2022.

The regulation at 8 C.F.R. § 204.5(h)(3)(ii) requires “[d]ocumentation of the alien’s membership in associations in the field for which classification is sought, which require outstanding achievements of their members, as judged by recognized national or international experts in their disciplines or fields.” USCIS determines if the association for which the person claims membership requires that members have outstanding achievements in the field as judged by recognized experts in that field.<sup>3</sup> The petitioner must show that membership in the association requires outstanding achievements in the field for which classification is sought, as judged by recognized national or international experts.<sup>4</sup>

D-K-’s letter discusses the Petitioner’s employment as a coach and head coach rather than as a member with [redacted] Regardless, although the letter claims that the Petitioner was chosen for his “outstanding accomplishments,” the letter does not indicate that [redacted] requires outstanding achievements, an essential element of this regulatory criterion. Further, the Petitioner did not offer supporting evidence, such as bylaws or other documentation, showing the hiring (membership) requirements for [redacted] In addition, the letter does not indicate whether national or international experts judge the hiring (membership) for [redacted] another vital element for this criterion.

As such, the Petitioner did not establish he fulfills this criterion.

## 3. Published Material

The regulation at 8 C.F.R. § 204.5(h)(3)(iii) requires “[p]ublished material about the alien in professional or major trade publications or other major media, relating to the alien’s work in the field for which classification is sought. Such evidence shall include the title, date, and author of the material, and any necessary translation.”

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<sup>3</sup> See generally 6 USCIS Policy Manual, *supra*, at F.2(B)(1).

<sup>4</sup> *Id.*

Initially, the Petitioner provided a partial translation for an article from *Sporting* [REDACTED]. Any document in a foreign language must be accompanied by a full English language translation. See 8 C.F.R. § 103.2(b)(3). Because the Petitioner offered a partial translation, we accord it no weight. Similarly, the Petitioner submitted another partial translation claiming for an article posted on [REDACTED] without providing the actual article; and therefore, we will also accord no weight to it. Regardless, neither translation contains the author of the articles, as required under this criterion. Moreover, both partial translations appear to relate to the Petitioner's activities as a judo athlete rather than as a judo coach. See *Lee*, 237 F. Supp. 2d at 914; *Integrity Gymnastics & Pure Power Cheerleading, LLC*, 131 F.Supp. 3d at 721; *Mussarova*, 562 F.Supp. 3d at 837.

In addition, the Petitioner offered a translation of an article from [REDACTED] *Weekly*. Although the article reflects a discussion of the Petitioner as both an athlete and coach, the translation did not provide the required author of the article.

In response to the Director's request for evidence, the Petitioner submitted an article from insidekung-fumagazine.com. However, the article postdates the filing of the petition; and therefore, will not be considered. See 8 C.F.R. § 103.2(b)(1); see also *Katigbak*, 14 I&N Dec. at 49.

Finally, this criterion not only requires published material about the individual relating to work in the field but also requires the material to have been published in professional or major trade publications or other major media.<sup>5</sup> We note the Petitioner did not offer any evidence for *Sporting* [REDACTED] [REDACTED] and insidekung-fumagazine.com showing their professional or major trade publication or other major media standing. As it relates to [REDACTED] *Weekly*, the Petitioner presented a screenshot from the publication's website indicating a weekly print circulation of 12,000 – 13,000, with a geographic distribution mainly in the Southern California area. However, the Petitioner did not demonstrate the significance or relevance of the figures, so as to show such circulation represents the major status of the publication.

For these reasons, the Petitioner did not demonstrate he meets this criterion.

### III. CONCLUSION

The Petitioner did not establish his receipt of a one-time achievement or satisfaction of the awards, membership, and published material criteria. Although the Petitioner also argues eligibility for original contributions under 8 C.F.R. § 204.5(h)(3)(v), we need not reach this additional ground, as well as a review of the Director's favorable determination for the leading or critical role criterion, because the Petitioner cannot fulfill the initial evidentiary requirement of at least three under 8 C.F.R.

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<sup>5</sup> See generally 6 *USCIS Policy Manual*, *supra*, at F.2(B)(1) (in evaluating whether a submitted publication is a professional publication, major trade publication, or major media, relevant factors include the intended business audience (for professional and major trade publications) and the relative circulation, readership, or viewership (for major trade publications and other major media)).

§ 204.5(h)(3). We also need not provide the type of final merits determination referenced in *Kazarian*, 596 F.3d at 1119-20. Accordingly, we reserve these issues.<sup>6</sup>

Nevertheless, we have reviewed the record in the aggregate, concluding it does not support a conclusion that the Petitioner has established the acclaim and recognition required for the classification sought. The Petitioner seeks a highly restrictive visa classification, intended for individuals already at the top of their respective fields, rather than those progressing toward the top. *Matter of Price*, 20 I&N Dec. 953, 954 (Assoc. Comm'r 1994) (concluding that even major league level athletes do not automatically meet the statutory standards for classification as an individual of “extraordinary ability,”); *Visinscaia*, 4 F. Supp. 3d at 131 (internal quotation marks omitted) (finding that the extraordinary ability designation is “extremely restrictive by design,”); *Hamal v. Dep’t of Homeland Sec. (Hamal II)*, No. 19-cv-2534, 2021 WL 2338316, at \*5 (D.D.C. June 8, 2021), *aff’d*, 2023 WL 1156801 (D.C. Cir. Jan. 31, 2023) (determining that EB-1 visas are “reserved for a very small percentage of prospective immigrants”). *See also Hamal v. Dep’t of Homeland Sec. (Hamal I)*, No. 19-cv-2534, 2020 WL 2934954, at \*1 (D.D.C. June 3, 2020) (citing *Kazarian*, 596 at 1122 (upholding denial of petition of a published theoretical physicist specializing in non-Einsteinian theories of gravitation) (stating that “[c]ourts have found that even highly accomplished individuals fail to win this designation”)); *Lee*, 237 F. Supp. 2d at 918 (finding that “arguably one of the most famous baseball players in Korean history” did not qualify for visa as a baseball coach). Here, the Petitioner has not shown the significance of his work is indicative of the required sustained national or international acclaim or it is consistent with a “career of acclaimed work in the field” as contemplated by Congress. H.R. Rep. No. 101-723, 59 (Sept. 19, 1990); *see also* section 203(b)(1)(A) of the Act. Moreover, the record does not otherwise demonstrate the Petitioner has garnered national or international acclaim in the field, and he is one of the small percentage who has risen to the very top of the field of endeavor. *See* section 203(b)(1)(A) of the Act and 8 C.F.R. § 204.5(h)(2). The record does not contain sufficient evidence establishing the Petitioner among the upper echelon in his field.

For the reasons discussed above, the Petitioner has not demonstrated his eligibility as an individual of extraordinary ability. The appeal will be dismissed for the above stated reasons, with each considered as an independent and alternate basis for the decision.

**ORDER:** The appeal is dismissed.

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<sup>6</sup> *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make “purely advisory findings” on issues that are unnecessary to the ultimate decision).